

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- x SUMMONS

EDWARD MOSELY,

Index No.:

Plaintiff,

The basis of venue is:
Location of the incident

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MICHAEL DENNIS, Shield No. 13608 and SERGEANT
ALFRED RICCI, Shield No. 5201,Plaintiff designates New York
County as the place of trial.

Defendants.

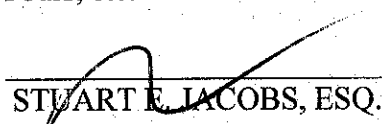
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 10, 2015

Yours, etc.


STUART E. JACOBS, ESQ.
Jacobs & Hazan, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690TO: City of New York, 100 Church Street, NY, NY 10007
Police Officer Michael Dennis, Shield No. 13608, Transit Manhattan Task Force
Sergeant Alfred Ricci, Shield No. 5201, Transit Manhattan Task Force

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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EDWARD MOSELY,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MICHAEL DENNIS, Shield No. 13608 and SERGEANT
ALFRED RICCI, Shield No. 5201,

Defendants.
----- X

INDEX NO:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, EDWARD MOSELY, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the common law and the laws of the State of New York. On November 4, 2011, at approximately 9:00 a.m., plaintiff, Edward Mosely while lawfully inside of the Union Square Subway Station, New York, New York, was unlawfully arrested by New York City police officers. Thereafter, plaintiff was maliciously prosecuted and denied the right to a fair trial. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, stopped, questioned, frisked, falsely arrested, falsely imprisoned, maliciously prosecuted, denied plaintiff his right to a fair trial, and violated plaintiff's due in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff Edward Mosely is a citizen of the United States and a resident of the State of New York.

3. Police Officer Michael Dennis, Shield No. 13608, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. On the date of incident, November 4, 2011, Police Officer Michael Dennis, Shield No. 13608, was assigned to Transit Boro Manhattan Task Force.

5. Police Officer Michael Dennis is being sued in his individual capacity and official capacity.

6. Sergeant Alfred Ricci, Shield No. 5201, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

7. On the date of incident, November 4, 2011, Sergeant Alfred Ricci, Shield No. 5201, was assigned to Transit Boro Manhattan Task Force.

8. Sergeant Alfred Ricci, Shield No. 5201 is being sued in his individual capacity and official capacity.

9. At all times relevant herein, the individually named police officer defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

12. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

13. On November 4, 2011, at approximately 9:00 a.m., plaintiff, Edward Moseley lawfully exited the number 4 subway train at the 14th Street Union Square station, and had just lawfully traveled on the 4 train from the 86th Street subway station, without incident.

14. Upon exiting the train at the 14th Street Union Square station plaintiff walked up the stairs to the station's upper platform to try to find a working payphone in the station.

15. At no time did plaintiff commit any crime, break any law, or behave in a manner that would lead a reasonable person and/or a reasonable police officer to believe that plaintiff committed a crime.

16. Nevertheless, the defendant police officers including Police Officer Dennis approached plaintiff as he was standing on the upper platform of the station

looking for a pay phone and stopped, questioned, frisked and unlawfully detained plaintiff, without reasonable suspicion, probable cause or any legal justification.

17. After approximately 3 minutes, the defendant police officers arrested plaintiff and handcuffed and falsely arrested him without probable cause or legal justification.

18. The defendant police officers did not observe plaintiff break any law or commit any crime, nor did any witness or civilian make a complaint to the police about plaintiff.

19. The defendant police officers transported plaintiff, by foot, to the transit district police precinct located inside of the Union Square subway station.

20. Plaintiff was unlawfully searched at the police precinct and unlawfully detained in a holding cell for many hours, without any legal justification for the detention.

21. Plaintiff's liberty interests were further violated when he was unlawfully fingerprinted, photographed, and detained in a holding cell.

22. The defendant police officers intentionally and maliciously forwarded false, misleading, fabricated and incomplete information about the factual allegations that formed their basis for arresting plaintiff to the Manhattan District Attorney's Office.

23. Specifically, the defendant police officers falsely alleged to the Manhattan District Attorney's Office that they observed plaintiff forcibly touch a female passenger on the 4/ 5 train and that the female passenger complained about plaintiff's alleged actions to the officers, but neither of those allegations were remotely true, individual while on the subway.

24. The defendant police officers, including defendant Police Officer Michael Dennis maliciously initiated a prosecution against plaintiff without probable cause by signing the accusatory instrument that was filed against plaintiff in New York County Criminal Court, containing the above-referenced false allegations.

25. The defendant police officers knew that the information they provided to the District Attorney's Office was fabricated and incomplete, and the defendant police officers knew that this fabricated and incomplete information would likely cause a criminal prosecution to be commenced against plaintiff.

26. Notably, at no time did anyone, other than the defendant police officers, accuse plaintiff of committing a crime, nor did the defendant police officers observe plaintiff commit any crime.

27. The female who, according to the defendant police officers, allegedly filed a complaint against plaintiff and allegedly accused plaintiff of forcibly touching her testified in plaintiff's criminal case and stated under oath that she never accused plaintiff of sexually touching her on the train and that she told the officers on the date of the underlying incident that she did not know whether someone on the crowded rush hour train touched her buttocks in a sexual manner. Further, the female testified under oath that she did not initiate a

complaint about being sexually touched on the train, but was approached by the police officers who suggested to her that someone on the train sexually touched her.

28. On November 4, 2011, the defendant police officers knew that the alleged complainant had no idea who, if anyone, touched her on the subway.

29. Nevertheless, the defendant police officers lied to the Manhattan District Attorney's Office and told them that the alleged complainant accused plaintiff of touching her on the subway, and the officers used false detailed sexual language to fabricate the complaint they claimed the female made against plaintiff.

30. The police officers false allegations against plaintiff contained in the criminal court complaint filed publically in New York County Criminal Court were extremely embarrassing allegations and plaintiff suffered extreme emotional and psychological damages when the charges against him were read in open Court against plaintiff.

31. Defendant Police Officer Michael Dennis, who signed the criminal court complaint under the penalty of perjury, falsely alleged in the sworn complaint that the alleged complainant told him plaintiff touched her in the subway.

32. It is clear from the complainant's sworn testimony during the criminal proceedings related to plaintiff's arrest that the defendant police officers fabricated the allegations contained in the criminal court complaint and lied to the District Attorney's Office about the facts and circumstances of the alleged incident that caused them to arrest plaintiff occurred on November 4, 2011.

33. After several hours at the precinct, plaintiff was transported to Manhattan Central Booking.

34. After approximately 24 hours in police custody, plaintiff was arraigned in Manhattan Criminal Court on false charges of Forcible Touching (PL 130.52) and Sexual Abuse in the Third Degree (PL 130.55).

35. Plaintiff was required to appear in Criminal Court on numerous dates, often for several hours per court date for approximately six months.

36. Plaintiff was forced to sit through hearings and trial in New York County Court for approximately three full days while he was repeatedly accused in open court of sexually violating a female which is a crime that comes with stigmas associated with it and which was extremely embarrassing to be accused of committing.

37. On March 12, 2012, plaintiff was acquitted and all of the fabricated charges were dismissed and terminated in plaintiff's favor.

38. Certain individually named police officer defendants observed the violation of plaintiff's rights under New York State Law and did nothing to prevent the unjustifiable false arrest and malicious prosecution of plaintiff.

39. The unlawful stop, question, frisk, false arrest, false imprisonment, malicious prosecution, denial of the right to a fair trial, and violation of plaintiff's due process rights of by the individually named police officer defendants caused plaintiff to sustain psychological and emotional trauma.

40. There is a policy, practice or custom within the New York City Police Department, wherein NYPD policy makers and precinct commanders placed enormous pressure on the police officers assigned to the Transit Boro Manhattan Task Force to arrest a minimum number of subway riders each month for "Forcible Touching (PL 130.52)" on subway trains, particularly during the morning rush hour commute. Given that it is difficult to identify whether an individual is forcibly touching or accidentally brushing up against another passenger on a crowded rush hour train or to accurately identify individuals engaged in forcible touching and to establish probable cause to make an arrest, in turn making it extremely difficult for the officers to meet the months quotas, or "performance goals" regarding how many forcible touching arrests they were expected to make. Thus, in order to meet the "performance goals" set by the supervisors at the Precinct and by policymakers of the NYPD, instead of properly establishing probable cause to arrest individuals for forcible touching, the officers assigned to the Transit Boro Manhattan Task Force routinely picked out individuals riding the subway who fit their profile of someone who might engage in forcible touching and whether or not the officer observed that individual "forcibly touch" another passenger the officers would approach a female passenger as she exited the subway train and tell her in a forceful manner that she had just been the victim of a man forcibly touching her on the subway. The police officers would then point to the man they profiled and in a leading manner suggest to the woman that she identify him as the individual that forcible touched her. Thereafter, the officers would unlawfully arrest the man they profiled as someone who might engage in forcible touching, without probable cause a without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance. This unlawful policy, practice or custom allowed the police officers assigned to the Transit Boro Manhattan Task Force to meet their monthly performance goals for forcible touching arrests.

41. By way of background, in response to an increase number of complaints made by the public between 2005 and 2009 about being victim of assailants bumping, grinding, groping, flashing or assaulting them on a subway trains, the NYPD established a plain clothes unit assigned to the Transit Boro Manhattan Task Force to identify gropers on trains during the morning rush hour commute and to arrest and prosecute the perpetrators assaulting them, the New York City Police Department Straphangers throughout the city reported being the victim of creeps bumping, grinding, groping, flashing and assaulting them more than 3,000 times over a five-year period — and Grand Central Station is the epicenter of subway sleaze, an unprecedented Daily News analysis of subway crime data revealed.

42. As a result of public outrage related to the forcible touching problem on the subways, the NYPD placed a tremendous amount of pressure on the officers and supervisors assigned to the unit addressing the issue to make arrests which would in turn decrease the number of perpetrators engaging in this conduct.

43. At the time of the underlying incident in this case, nearly half of all forcible touching incidents in the subway allegedly occurred on the Lexington Ave. line between the Brooklyn Bridge/City Hall station and 125th St. in Harlem. An offense committed on a moving train is attributed, under NYPD statistical procedures, to the next stop on the line.

44. Therefore, the police officers assigned to the unit addressing the "forcible touching" problem on subway trains was overwhelmingly assigned to the locations where the forcible touching was allegedly being committed, on the Lexington Avenue line between the Brooklyn Bridge/City Hall station and 125th St. station in Harlem.

45. The Transit Boro Manhattan Task Force Unit arrested numerous people for forcible touching while riding the Lexington Avenue subway trains and even exceeded the performance goals set by the NYPD.

46. However, contrary to the NYPD's expectations, the increase in police enforcement of the law did not decrease the number of complaints made by the public about forcible touching on the train line that the officers were patrolling.

47. In fact, the number of complaints made by the public about misdemeanor sex crimes on the Lexington Avenue Subway line increase dramatically and made misdemeanor sex crimes the most prevalent category of crime at Grand Central over those five years.

48. Furthermore, the crime of forcible touching rose in prevalence and suddenly became the most prevalent sex crime in the system and had never previously before been close to the most common crime reported.

49. However, gropers, in particular, generally seek crowded places like subway cars or platforms that provide them with plenty of targets and the ability to shield their movements, making it practically impossible for the police officers to identify them as a groper. The Lexington Ave. line, the line the Task Force officers were assigned was the busiest in the nation, according to the Metropolitan Transportation Authority, making it an especially difficult place to spot an individual engaged in forcible touching during rush hour.

50. The number of complaints made by the public about forcible touching did not decrease as the Task Force increased the number of arrests they made for the crime because the Task Force officers had a policy, practice and custom described above of arresting male passengers riding the subway for forcible touching, without probable cause, and in all likelihood the arrestees were often not individuals that committed the crime of forcible touching. Therefore, a majority of the forcible touching arrests made by the Task Force did not act to deter individuals who were actually committing the crime.

51. Notably, the number of complaints made by the public about forcible touching increased after the Task Force increase the number of arrests made for the crime because in addition to the complaints made by the general public, the NYPD Task Force's falsified complaints about instances when they allegedly observed forcible touching were also counted as part of the statistic.

52. At Grand Central Station on the Lexington Avenue Line — with an average of 147,644 riders swiping in each day — the peak hours for forcible touching are during the morning rush, with 71% of incidents occurring between 8 a.m. and 10 a.m. Citywide, 37% of forcible touching were tallied during that two-hour period.

53. For the express purpose of meeting their "performance goals" for the number of forcible touching arrests they should make per month that was set their supervisors, the defendant police officers profiled plaintiff based upon his appearance, as someone who might engage in forcible touching on the subway. Therefore, the defendant police officers followed plaintiff on foot as he transferred from one train to another, but the officers did not observe plaintiff engage in any illegal activity and certainly not forcible touching. Nevertheless, the officers falsely arrested plaintiff because they followed the NYPD's policy and practice of unconstitutionally arresting individuals for forcible touching on subway trains, without probable cause or legal justification to make the arrest and for the purpose of meeting the performance goals set by the police department which they are under enormous pressure to meet or surpass.

54. Additionally, at the time of plaintiff's arrest, the NYPD knowingly, recklessly, negligently, and with deliberate indifference permitted the officers assigned to the unit that arrested plaintiff from the Transit Boro Manhattan Task Force to be supervised by

defendant Sergeant Alfred Ricci, an NYPD Sergeant who was not fit to supervise police officers or to evaluate when the officers he supervised made lawful arrests and when the arrests should be Voided.

55. In 2008 defendant Sergeant Alfred Ricci confessed to deliberately withholding a videotape from CCRB of a the violent confrontation he had at the Times Square subway station with a suspect

56. Defendant Sergeant Ricci admitted to withholding the key piece of video footage of the incident from the Civilian Complaint Review Board during their investigation into whether he used excessive force against a civilian.

57. However, the CCRB was provided nine MTA tapes from various cameras in the station, but none showed the force incident

58. As a result, the CCRB investigator exonerated Ricci of wrongdoing without seeing the key tape - which showed the sergeant punching the civilian.

59. Thereafter, the individual Sergeant Ricci falsely arrested and used excessive force against during said incident filed a Federal lawsuit against Sergeant Ricci, alleging, inter alia, that Sergeant Ricci conspired with other police officers that he supervised to conceal the video evidence of the underlying incident and the City of new York settled the lawsuit for \$200,000.

60. Upon information and belief, Sergeant Ricci was not disciplined by the NYPD for his conduct and for intentionally covering up that engaged in misconduct.

61. The NYPD did not even transfer Sergeant Ricci to a different unit or assignment after he was caught engaging on such prohibited behavior and possibly convincing the subordinate officers he supervised to help him withhold the video footage of the arrest and force used by Ricci against the arrestee, from CCRB

62. Instead, the police department apparently overlooked Sgt. Ricci's misconduct and permitted him to continue supervising the police officers assigned to the Transit Boro Manhattan Task Force.

63. In fact, on the date of the underlying incident in this case, Sgt. Ricci partook in and supervised the false arrest and subsequent malicious prosecution of plaintiff.

64. Sergeant Ricci encouraged defendant Police Officer Michael Dennis to arrest plaintiff for forcible touching of a female while riding the Lexington Avenue Subway train, even though Sgt. Ricci and Officer Dennis were advised by the female that she did not know whether she was forcibly touched by anyone on the train and affirmatively told the officers that she had absolutely no idea whether plaintiff touched her and lacked probable cause to arrest plaintiff.

65. The New York City Police Department's deliberate indifference to Sgt. Ricci's prior misconduct allowed him to be employed by the NYPD in a supervisory position on the date of plaintiff's arrest during which he permitted a subordinate officer to arrest plaintiff without probable cause and to provide the District Attorney's Office with fabricated pertinent facts that formed the basis for a prosecution to be initiated against plaintiff. Specifically, Sgt. Ricci permitted Officer Dennis to mislead or lie to the prosecutor about whether the purported victim ever accused plaintiff of committing a crime against her.

66. The police officers know that the alleged victims cannot identify the purported individual that allegedly attacked the purported victim; however they arrest the alleged perpetrators any way.

67. The police officers then falsely state to the District Attorney's Office that the alleged victim positively identified the alleged attacker when the police officers know that information is untrue.

68. As a result of defendant City of New York and the New York City Police Department's policy of unconstitutionally arresting individuals they suspect to be involved in a forcible touching, but without probable cause or reasonably articulable suspicion to believe they violated a specific law, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely engage in this conduct, there is a pattern, policy, custom or practice of New York City Police Officers arresting individuals they suspect to be involved in a forcible touching, but without probable cause or reasonably articulable suspicion to believe they violated a specific law.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth, Fifth Amendment and Fourteenth Amendment Rights

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, unlawfully seized, unlawfully searched, falsely arrested and falsely imprisoned, maliciously prosecuted plaintiff. Additionally, the defendants denied plaintiff a right to a fair trial by denying him due process under the Fifth Amendment to the United States Constitution. Finally, the defendant officers subjected plaintiff to an abuse of process, all without probable cause or any legal justification in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States. Thereafter, the individually

71. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the United States Constitution and laws of the State of New York.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

75. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the United States Constitution and laws of the State of New York.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

80. Defendants lacked probable cause to search plaintiff.

81. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Stop, Question and Frisk

84. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

85. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

86. The conduct of defendants in stopping, questioning and frisking, and plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

87. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

89. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

90. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 89 with the same force and effect as if more fully set forth at length herein.

91. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

92. Defendants commenced and continued a criminal proceeding against plaintiff.

93. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

94. The prosecution and criminal proceedings terminated favorably to plaintiffs on or about March 12, 2012.

95. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

97. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 96 with the same force and effect as if fully set forth herein.

98. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

99. Defendants filled out false and misleading police reports, and forwarded them to prosecutors in the New York County District Attorney's Office.

100. Defendants fabricated evidence and signed false and misleading supporting depositions in New York County Criminal Court and forwarded them to prosecutors in the New York County District Attorney's Office.

101. In withholding/creating false evidence against plaintiff Edward Mosely and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

102. As a result of the foregoing, plaintiff Edward Mosely, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process

104. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 103 with the same force and effect as if fully set forth herein.

105. Defendants issued legal process to plaintiff Edward Mosely when they placed him under arrest, and when defendant Police Officer Michel Dennis entered false information onto and signed the supporting deposition containing false information and filed the fraudulent document with the New York County Criminal Court in support of the criminal court complaint that charged plaintiff with crimes he did not commit and was not accused of committing by the victim, as falsely alleged in the criminal court complaint..

106. Defendants arrested plaintiff Edward Mosely in order to obtain a collateral objective outside the legitimate ends of the legal process, namely to make enough arrests to meet the quotas/ "performance goals" set by defendants' supervisors regarding the number of forcible touching arrests the officers should make each month and also to justify the Transit Task Force that was created by the NYPD and to satisfy their superiors in making many arrests.

107. Defendants acted with intent to do harm to plaintiff Edward Mosely without excuse or justification.

108. As a result of the foregoing, plaintiff Edward Mosely sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

109. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

110. As a result of the foregoing, plaintiff's Constitutional rights were deprived and he sustained great emotional injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

111. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 110 with the same force and effect as if more fully set forth at length herein.

112. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

113. Defendants failed to intervene to prevent the unlawful conduct described herein.

114. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

115. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the United States Constitution and laws of the State of New York.

116. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

117. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 116 with the same force and effect as if more fully set forth at length herein.

118. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

119. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, arresting individuals on the subway for a forcible touching when they knew that the alleged victims could not identify the defendants as their attackers and when the police officers knew that a crime had not occurred, and arresting individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable cause to believe the individual forcibly touched another passenger on the subway in a sexual manner. Additionally, the NYPD has a pattern and practice of, inadequate screening, hiring, discipline, retaining, training, and supervising its employees with respect to this issue.

120. Additionally, the aforementioned customs, policies, usages, procedures and rules of defendant City of New York and the New York City Police Department, included but were not limited to, unlawfully arresting individuals, without probable cause or legal justification for allegedly committing forcible touching on subway trains..

121. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

122. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

123. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

124. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully strip searched.

125. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

126. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Edward Mosely demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
March 10, 2015

By:

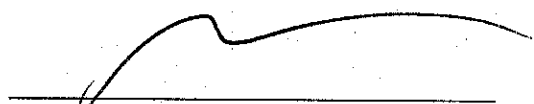

STUART E. JACOBS, ESQ.
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New York, New York 10007
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ATTORNEY'S VERIFICATION

STUART JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
March 10, 2015



STUART E. JACOBS